

**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST REPUBLIC
OF SRI LANKA**

In the matter of an appeal against a final order of the High Court under section 331 of the Code of Criminal Procedure Act No.15 of 1979.

The Democratic Socialist Republic of Sri Lanka.

COMPLAINANT

**Court of Appeal
No.CA/HCC/0090/2025**

Vs.

**High Court of Colombo
Case No. HC/171/2017**

Santhosham Dharmaraj Sivabalan alias
Bala Mama,
No.47, J12,
Samith Pura,
Mattakuliya,
Colombo 12.

ACCUSED

AND NOW BETWEEN

Santhosham Dharmaraj Sivabalan alias
Bala Mama,
No.47, J12,
Samith Pura,
Mattakuliya,
Colombo 12.

ACCUSED-APPELLANT

Vs.

The Hon. Attorney General,
Attorney General's Department,
Colombo 12.

COMPLAINANT-RESPONDENT

Before: **Amal Ranaraja J.**

&

Dr. Sumudu Premachandra J.

Counsel: Kasun Liyanage for the Accused-Appellant.

Azard Navavi, ASG for the Respondent.

Accused-Appellant is produced via zoom platform by the Prison Authorities.

Written Submissions: By the Accused-Appellant filed on 11/09/2025.
By the Respondent filed on 12/05/2026.

Argument On : 24/08/2026.

Judgement On : 25/09/2026.

Dr. Sumudu Premachandra J.

1] The Accused Appellant is charged with the following offences;

- **Count 01:** - Statutory Rape punishable under Section 364 (2) of the Penal Code.
- **Count 02:** - Grave Sexual Abuse punishable under Section 365 B (2) (b) of the Penal Code.

2] The second count was added after the evidence of Victim, PW 01 on 19/02/2021 and dated of the 2nd count was amended 02/02/2022, and both alterations were read over to the accused and he pleaded not guilty to the charge.

3] At the time of the incident, the Victim was an 8 year' old young child and was called into the Accused's residence/room while playing with other children. The Accused placed her on his lap, removed her lower garments and subjected her to non-consensual sexual activity while instructing her not to disclose the incident. Following the assault, the child suffered genital bleeding, which her mother and grandmother initially misunderstood as the onset of menstruation and consequently conducted traditional puberty rituals.

4] However, the incident was disclosed approximately two months later when her aunt (PW 05) noticed that menstruation had not recurred and questioned the child. The Prosecution relied principally on the Victim's testimony (PW 01), the evidence of her aunt and grandmother, and the investigating officers. The Judicial Medical Officer (PW 09), supported by the JMO report and clinical notes (P2 and P3). P1, the Birth certificate and age of the child were admitted facts.

5] At the evidence, the child could not give the exact date of the incident. However, she narrated that it happened in 2014. In the evidence, she did not deny anything that happened. She said that she cannot recall or remember. The demeanor of the child was recorded by the learned trial judge. She was crying loud at the time of giving evidence and was reluctant to recall the incident.

6] The evidence show that the incident happened in the morning and she was playing with children. The Accused (Uncle) called her inside his house. Then she was taken to the lap of the Accused. The evidence revealed that the Accused removed and inserted his hand through the undergarment and fingered her vagina. Then she ran away. After the cross examination, her evidence was closed.

7] At that point, the Prosecution amended the charge and added a charge of grave sexual abuse. Thereafter, other Prosecution witnesses were called and

Prosecution closed the case. The Accused made a dock statement denying the incident. After a contested trial, the Accused was acquitted for the charge of rape and convicted for the added charge of grave sexual abuse. The Accused was sentenced to 15 years' rigorous imprisonment. In addition, Rs.20,000/= fine (in default 6 months' simple imprisonment) and Rs.500,000/= Compensation (in default 2 years' simple imprisonment) payable to the Victim were also imposed.

8] Being aggrieved to the said conviction and sentence, the Accused-Appellant prefers this appeal on the following grounds;

1. Joinder of charges vis. statutory rape and grave sexual abuse in one and the same indictment amounts to Mis-Joinder which has denied the Accused-Appellant of a fair trial.
2. Material amendments to the indictment made after the PW 01's evidence was concluded and also during the recall of PW 01 has caused the Accused-Appellant denial of a fair trial.
3. The learned Trial Judge has erroneously and/or unjustifiable and/or unreasonably rejected the inconsistencies inter se and per se in and among the Prosecution witnesses thus causing prejudice on the substantial rights of the Accused-Appellant i.e., right to a fair trial.
4. Alternatively, at any event, the sentence imposed on the Accused-Appellant was excessive.

9] The grounds that joinder of charges vis. statutory rape and grave sexual abuse in one and the same indictment amounts to mis-joinder which has denied the Accused-Appellant of a fair trial and material amendments to the indictment made after the PW 01's evidence was concluded and also during the recall of PW 01 has caused the Accused-Appellant denial of a fair trial are interwoven and considered together.

10] When considering the evidence, it is apparent that the offence of grave sexual abuse had been added after the closing of the Victim, PW 01's evidence. However, the charge was read and explained and plea was taken. It is clear that pages 139 to 163 show that after the amendment to the indictment, arraignment was done and PW 01 was called for cross examination. Thus, one cannot say that fair trial was denied to the Accused-Appellant.

11] I now consider the validity of the amendment. Section 167 of the Code of Criminal Procedure Act No. 15 of 1979 deals with the amendment of the charges. It enacts;

"1. Any court may alter any indictment or charge at any time before judgment is pronounced or, in the case of trials, before the High Court by a jury, before the verdict of the jury is returned.

2. Every such alteration shall be read and explained to the accused.

3. The substitution of one charge for another in an indictment or the addition of a new charge to an indictment and in a Magistrate's Court the substitution of one charge for another or the addition of a new charge shall be deemed to be an alteration of such indictment or charge within the meaning of this section." [Emphasis is added]

12] In **John Perera v. Weerasinghe** 53 NLR 158 the court held that;

"An amendment of a charge should not be refused by the judge unless it is likely to do substantial injustice to the accused."

13] In **Doole v. The Republic of Sri Lanka** [1978-1979] 2 SLR 33 the court held that;

"as a rule an amendment to an indictment should be allowed if it would have the effect of convicting the guilty or securing the acquittal of the

innocent, but it should not be allowed if it would cause substantial injustice or prejudice to the accused.”

14] In **Hiththatcharilage Gnanaratna alias Shantha Mama vs The Hon. Attorney General**¹, CA/HCC/ 0170/2020, decided on 10/03/2023, His Lordship P. Kumararatnam, J. considered amendments as;

“In a criminal trial the basic foundation is the charge. By charging, an accused is provided information as to the nature of the allegation levelled against him. The charge must identify the act committed by the accused, the law alleged to have been violated by him and particulars pertaining to the alleged offence must be specified in the charge. It is the profound duty of a prosecutor to frame the charge/s after careful consideration of evidence available in the case at the time of drafting the charge. The requirements of a valid charge are set out in Sections 164 and 165 of the Code of Criminal Procedure Act No.15 of 1979.”

15] Last week, this court in **Mohomed Ismail Mohomed Irshad vs The Hon. Attorney General**, CA Appeal No.CA/HCC/0066/2024, decided on 18/09/2026 held;

“In plain text, it is seen that the indictment can be amended before the judgement is pronounced or delivery of the verdict by the jury. The section itself shows that substitution of one charge for another in an indictment or the addition of a new charge to an indictment is permissible. The condition is that such alteration shall be read and explained to the Accused.

...

According to section 165 of the Criminal Procedure Code, if the trial has already started and the witnesses or evidence reveal a mismatch with the original charge, I am of the view that the Prosecution can request an amendment to confirm to the evidence. This can usually happen at any time before the judge or jury renders a final verdict. It is my understanding that the indictment or charge sheet is a living thing, and it cannot be static. Once

the indictment or charge sheet is amended, and if the story goes against the first complain, it becomes unreliable. Then, the defense can elicit the contradiction and draw omission to the court, to discredit the witness, thus, allowing an amendment confirming the evidence would not harm the Accused. 26] It should be noted when allowing the amendment, the fair trial protections must be given for the Accused. To prevent the Prosecution from blind-siding the Defense, courts can allow the witness to recall and grant postponement (adjournment) enabling the Accused to prepare for the new charge. It is to be remembered that while securing a fair trial to the Accused, the justice should also equally be done to the Victims.”

16] In **Nissanka Anthony v. Attorney General**, Case No: **CA-HCC-232/2016**, decided on 05/04/2022., His Lordship P. Kumararatnam, J. considered whether amending the indictment to include an alternative charge of Grave Sexual Abuse under Section 365 B (2) (b) of the Penal Code was legally proper and held;

“In a criminal trial the basic foundation is the charge. By charging, an accused is provided information as to the nature of the allegation levelled against him. The charge must identify the act committed by the accused, the law alleged to have been violated by him and particulars pertaining to the alleged offence must be specified in the charge.

It is the profound duty of a prosecutor to frame charge/s after careful consideration of evidence available in the case at the time of drafting the charge. The requirements of a valid charge are set out in Sections 164 and 165 of the Code of Criminal Procedure Act No.15 of 1979.”

17] However, in **Mahalakotuwa v. The Attorney General** [2011] 2 B.L.R 406 D.S.C Lecamwasam,J. held that:

“In a case of this nature when the facts clearly show that the accused cannot brought under 365B (2) b, learned judges should not hesitate to use their prudence in deciding whether a particular set of facts constitute the offence contained in the indictment or not. If not, without mechanically

passing the sentence on the indictment already filed they must have the audacity to act under 177 or 178 of the CPC and convict the accused accordingly for a different offence.”

18] In **Jeyarasa Sajeevan vs The Hon. Attorney General**, CA HCC 189/2020, Decided on: 26/10/2023, Her Ladyship MENAKA WIJESUNDERA J. considered the amendment to the charge and noted;

“The provision relating to the alteration of a charge in an indictment is at section 167 of the CPC and according to which the indictment can be amended until the judgment is delivered. But under 167 (2) it says if the charge has been so altered the altered charge has to be read over to the accused which in this case has been done by the trial judge. But under section 171 of the CPC the Court shall allow the defense and the prosecution to recall witnesses if an application is made to that effect.

Hence according to the above section if the defense or the prosecution makes an application to recall the witnesses after an alteration of the charges in the indictment the Court has to allow the same, but in this instant no such application has been made.

Hence it is the opinion of this Court that the trial judge had followed the procedure which is incumbent on him but the Counsel for the appellant has not played his part for reasons best known to him.

Hence, we are unable to agree that it caused any prejudice to the appellant and even after the amendment the appellant has given evidence from the box and he had completely denied the allegation.

The Counsel has further submitted that the prosecution has altered the charge to suit the evidence which transpired in Court but with this submission also we are unable to agree because according to section 167 (1) of the CPC a charge in an indictment can be altered until the judgment is delivered.”

19] However in **Jeyarasa Sajeevan vs The Hon. Attorney General** (Supra), with regard to the misjoinder, Her Ladyship held as follows;

“Another ground of appeal raised by the counsel for the appellant is that when a charge of rape is framed in the same indictment a charge of grave sexual abuse cannot be framed because the acts referred to are part of one act.

According to section 173 of the CPC for every distinct offence a separate charge may be drafted. Hence for each distinct offence a separate charge has to be drafted. If that is so the word distinct appears to be the vital word here and it means, something different and something which has its own characteristics.

The offence of rape and grave sexual abuse has its own ingredients under the respective definitions in the Penal Code and if we may simplify it, grave sexual abuse can be defined as contact without consent and rape can be defined as vaginal penetration without consent.

Hence it is very clear when considering the definition of rape and grave sexual abuse under the Penal Code that the two are distinct and unconnected offences.

This submission of the Presidents Counsel we do agree with for the simple reason that if a man is charged for committing grievous hurt, he will not be charged for simple hurt as well committed on the same victim during the same transaction because both offences although distinct in nature it involves acts committed during the same series of events.

At this stage we have considered the objection to the indictment (even though it was not raised at the High Court level) in the interest of justice because it is enshrined in our Constitution that every citizen has to be given a fair trial.

As such we find that the indictment against the appellant filed by the Attorney General is not in order, and there was no proper indictment for the appellant to plead to.

Hence, we are compelled to set aside the conviction and the sentence imposed by the trial judge based on that ground.

In addition to the above, upon considering the evidence adduced at the trial we find that the evidence of the victim is wholly untrustworthy due to the reason that the Attorney General had to amend the charges for the reason that she had contradicted her position in the statement to the police although the defense counsel had failed to bring it to the notice of Court. Furthermore, the trial judge also had failed to consider the same.”

20] However, in **LIONEL v. OFFICER-IN-CHARGE, MEETIYAGODA POLICE STATION** [1987] 1SLR 210, His Lordship L. H. DE ALWIS, J. held that misjoinder of charges is curable under provisions of the Code of Criminal Procedure if there has been no actual or possible failure of justice. It was held;

“(1) that the time at which it falls to be determined that the conditions that the offences alleged had been committed in the course of the same transaction had been fulfilled, is the time when the accusation is made, and not when the trial is concluded and the result is known.

(2) that a misjoinder of charges is curable under provisions of the Code of Criminal Procedure if there has been no actual or possible failure of justice.

(3) as the misjoinder, in the present case, has not prejudiced the appellants and occasioned a failure of justice, it amounts to an irregularity that is curable under section 436 of the Code of Criminal Procedure Act No. 15 of 1979, and the appeal, therefore, fails.”

21] The learned Counsel for the Appellant contended that misjoinder cannot be cured under section 176 of the Criminal Procedure Code. The section 176 enacts;

“176. If a single act or series of acts is of such a nature that it is doubtful which of several offences the facts which can be proved

will constitute, the accused may be charged with all or any one or more of such offences and any number of such charges may be tried at one trial and in a trial before the High Court may be included in one and the same indictment; or may be charged with having committed one of the said offences without specifying which one.

Illustration

A is accused of an act which may amount to theft or receiving stolen property or criminal breach of trust or cheating. He may be charged with theft, receiving stolen property, criminal breach of trust, and cheating, or **he may be charged with having committed one of the following offences, to wit, theft, receiving stolen property, criminal breach of trust, and cheating.**” [Emphasis is added]

22] It is to be noted that the first charge is rape and the amended charge was inserted in addition to the first charge rape. It is to be noted that grave sexual abuse cannot be held as a lesser offence of rape. Both are not cognate offences, because the ingredients of the charges are different. In rape the *actus reus* is penetration, in grave sexual abuse, the *actus reus* is contact. In the Indian judgement of Supreme Court in **Rafiq Ahmed Rafi vs State of U.P.** 2011 (8) SCC 300, the Court has discussed the meaning of cognate offences as follows;

*"Usually, an offence of grave nature includes in itself the essentials of a lesser but cognate offence. In other words, there are classes of offences like offences against the human body, offences against property and offences relating to cheating, misappropriation, forgery etc. In the normal course of events, the question of grave and less grave offences would arise in relation to the offences falling in the same class and normally may not be inter se the classes. It is expected of the prosecution to collect all evidence in accordance with law to ensure that the prosecution is able to establish the charge with which the accused is charged, beyond reasonable doubt. It is only in those cases, keeping in view the facts and circumstances of a given case and **if the court is of the view that the grave offence has not been established on merits or for a default of technical nature, it***

may still proceed to punish the accused for an offence of a less grave nature and content. We have already noticed that a person charged with a heinous or grave offence can be punished for a less grave offence of cognate nature whose essentials are satisfied with the evidence on record. Examples of this kind have already been noticed by us like a charge being framed under Section 302 IPC and the accused being punished under Section 304, Part I or II, as the circumstances and facts of the case may demand. Furthermore, a person who is charged with an offence under Section 326 IPC can be finally convicted for an offence of lesser gravity under Section 325 or 323 IPC, if the facts of the case so establish. **Alike or similar offences can be termed as 'cognate offences'**". [Emphasis is added]

23] In the above circumstances, I do not see any bar for the stand of rape and grave sexual offence in a single indictment, although those are not cognate offences, however, the trial judge can only convict a single charge not both. The section 177 makes it clear if the evidence appears that the Accused had committed a different charge he be convicted although he has not been charged with it. In that event, before the verdict the Accused should be informed about the charge and read over, arraigned and witnesses should be recalled if demanded by the Accused.

24] The section 177 of the Criminal Procedure further shows the legal position as;

"177. If in the case mentioned in section 176 the accused is charged with one offence and it appears in evidence that he committed a different offence for which he might have been charged under the provisions of that section, he may be convicted of the offence which he is shown to have committed although he was not charged with it.

Illustration

A is charged with theft. It appears that he committed the offence of criminal breach of trust or that of receiving stolen goods. He may be convicted of criminal breach of trust or of receiving stolen goods (as the case may be) 'though he was not charged with such offence.'

25] Further, in section 178 permits to convict lesser offences. It says;

“178. (1) *When a person is charged with an offence consisting of several particulars a combination of some only of which constitutes a complete minor offence and such combination is proved but the remaining particulars are not proved he may be convicted of the minor offence though he was not charged with such offence.*

(2) *When a person is charged with an offence and facts are proved which reduce it to a minor offence he may be convicted of the minor offence although he was not charged with it and although jurisdiction to try such minor offence is exclusively vested in some other court.*

(3) *Anything in this section shall not be deemed to authorize a conviction for any offence referred to in section 135 when a complaint has not been made as required by that section.”*

26] Thus, in considering the totality of sections 176, 177 and 178 of the Criminal Procedure, it is clear, the amendment or alteration of charges must be interpreted in a broad sense and aligned with the intention of the legislature. Thus, same classes of offences can be joined and it will not be a misjoinder. Rape and grave sexual offence though they are not cognate offences, they are the same classes of offences, offences against the body, can be joined. Thus, charging statutory rape and grave sexual abuse in one and the same indictment does not necessarily amount to a misjoinder if they arise from the same transaction.

27] It is seen that joinder is permissible and the impugned charges are based on the same act or transaction (e.g., a single criminal incident where multiple illegal

sexual acts occurred) or they are connected together as part of a common scheme or plan or they are of the same or similar character. Because statutory rape and grave sexual abuse are both sexual offenses and frequently stem from the exact same abusive encounter joining them in separate counts of a single indictment is a standard practice and does not constitute a misjoinder.

28] The Appellant relies on **Mohamed Aboobakar Ibrahim v. Hon. Attorney General** , CA 191/2002, decided on 12/08/2016, a division of this court , His Lordship M.M.A Gaffoor, J. set aside the conviction and sentence as the Accused-Appellant was originally indicted in the High Court for committing the offence of rape under Section 364 (2) (e) of the Penal Code and the learned trial judge convicted the Appellant for Grave Sexual Abuse under Section 365 B (2) (b) of the Penal Code instead, on procedural irregularity as stated above for failing to amend the indictment deprived the Appellant of a targeted defense, constituting a grave legal misdirection. In this case the charge was amended, he was informed and the Victim was recalled for cross examination. If the Victim was going against her original statement, it is duty of the defence to pinpoint the contradictions and the omissions as the adversarial system, the judge cannot peruse the information books and come into a conclusion. The judge should act on the substantive evidence which come from the witness box only. Thus, I dismiss the 1st and 2nd grounds of appeal.

29] The Appellant contended that the learned Trial Judge has erroneously and/or unjustifiable and/or unreasonably rejected the inconsistencies inter se and per se in and among the Prosecution witnesses thus causing prejudice on the substantial rights of the Accused-Appellant i.e. right to a fair trial. It is to be noted no contradiction marked or omission was drawn at the trial. As I noted above, it is for the defence to elicit contradictions and omissions and impeach the witness.

30] Under section 118 of the Evidence Ordinance, the child is in tender ages, if the child can understand the question and give rational answers, he/she can be

treated as a competent witness. This universal rule applies to every witness. Section 118 says;

“All persons shall be competent to testify unless the Court considers that they are prevented from understanding the questions put to them, or from giving rational answers to those questions, by tender years, extreme old age, disease, whether of body or mind, or any other cause of the same kind.”

31] In the instant case, the child was 8 years’ when she underwent the incident and she was 13 years’ of age when giving evidence. Evidence shows that she has understood and had given rational answers. However, she has not remembered some points or reluctant to recall the incident. The particular act was described as;

“ප්‍ර. ඔය සිද්දිය කරපු කෙනා උසාවියේ ඉන්නවද දැන්?

උ. ඔව්

ප්‍ර. කවුද ඒ? අත දික්කරලා පෙන්වන්න පුළුවන් ද?

උ. (සාක්ෂිකාරිය විසින් විත්ති කුඩුවේ සිටින විත්තිකරු පෙන්වා සිටියි)

ප්‍ර. ගෙදරදී ඒ ඡාච පුටුව ඉන්දගෙන ඒ ඡා ගේ කලිසම ගලවලා ඒ ඡා ගේ වූ පැත්ත අතගැවා කියලා කිව්වා නේද?

උ.ඔව්.

ප්‍ර. ඇතුළටත් දැමීමා කිව්වා.

උ.ඔව්.

ප්‍ර. ඒ මාමාගේ ඇඟිල්ල හැර වෙන මොනවද දැමීමද?

උ. වෙන මොනවත් දැමීමේ නැහැ.”

32] The said part of evidence is clear and cogent evidence has not been impeached, can be relied upon for safe conviction. In **Thimbirigolle Sirirathana Thero v. The Officer in Charge, Police Station, Rasnayakepura (and the Attorney General)**, Court of Appeal Case No: CA/HCC/194/2015, it was held the demeanour and the deportment of child witness as;

“In cases of sexual offences, Courts have found that victims of sexual offences can react in different ways. Some may complain immediately. Others may feel, for example, afraid, shocked, ashamed confused or even guilty and may not speak out until some time has passed. There is no typical reaction.

...

When it comes to a child victim, he or she may even find it difficult to explain to court the delay in making the complaint. The Trial Judge, before whom the witnesses testified, is the best person to decide on the credibility of the victim and the other witnesses as he observed the demeanour and deportment of the witnesses. In this case the learned trial judge in his judgment has given careful consideration to the above aspects and also to all the evidence adduced by the prosecution and defence at the trial.

...

In cases of sexual offences against children, victims very often find it difficult to remember the exact date of the offence by the time they testify in court after a long lapse.”

33] In **Henry David Damith Jayawardana alias Hendry David Damith Jayawardana vs Hon. Attorney General**, CA/HCC/0431/2019, decided on 02/12/2022, His Lordship K. PRIYANTHA FERNANDO, J.(P/CA) held;

“Child victims in sexual crimes of this nature, are often reluctant to inform their parents or guardians about the abuse immediately unless they are compelled to do so. Most importantly, one cannot expect a child of tender age to keep a record of the exact date on which he/she was abused or raped, unless there is some special significance on the date in which the abuse took place.”

34] Thus, the court case is not an examination for a memory check from the child Victim, it is for every witness and it must be assessed in totality and a reasonable manner. After amending the indictment, just because the Victim had said differently in the police statement, the court cannot act on these different versions unless contradictions are marked and omissions are drawn and both are proved in a lawful manner. The judge may not be a mere umpire, however he sits as an adjudicator, in this adversarial system, he cannot be an investigator by searching evidence. The Accused may have been represented by an assigned counsel; however, they are full-fledged counsels to conduct a trial. In the legal fraternity there may be President Counsels, seniors and juniors (possibly inexperienced), however, in the court of law there cannot be deviation as all are full-fledge to handle a case once they were enrolled as attorneys. In the lower court sentencing, the learned counsel for the Accused had mentioned that he was represented by an inexperienced junior, assigned counsel. In this case, after amending the indictment an adequate time was given for the preparation and therefore, one cannot say the Accused was denied a fair trial.

35]The learned Trial Judge held that the Victim PW 01 is a credible witness. Although she was distressed in court and the absence of any apparent motive to falsely implicate the Accused further strengthened her credibility. The Accused's unsworn dock statement denying the allegations and claiming that he had been falsely implicated by the police was rejected by the learned Trial Judge. In assessing the evidence, the Trial Court had considered the Victim's competency under Section 118 of the Evidence Ordinance and the formal admissions made under Section 420 of the Code of Criminal Procedure Act No. 15 of 1979. The learned Trial Judge held although the child gave evidence several years' after the incident and there were minor variations concerning the precise date and description of the acts, the Court regarded such discrepancies as natural in view of her tender age, lack of sexual awareness and the substantial lapse of time. The Trial Court also found the approximately two-month delay in reporting to be reasonably explained by the child's fear, innocence, confusion, the Accused's instruction to remain silent, and the family's initial belief that the bleeding was menstruation as she has attained

puberty. The reasoning of the learned Trial Judge cannot be found fault with. Thus, I affirm the conviction for the 2nd count.

36] For the last ground, the Appellant, alternatively pleaded that the sentence imposed on the Accused-Appellant is excessive. I see the range for imprisonment for grave sexual abuse is 7 years' minimum to 20 years' maximum. The learned Trial Judge has imposed 15 years' which is the upper margin. The Appellant is a first offender and acted was a single act. I am of the view since considerable compensation (Rs. 5,00,000/=) was imposed, he should be given a minimum sentence. Therefore, I reduce 15 years' imprisonment to 7 years' imprisonment. The other part of the sentence order of the lower court shall remain unchanged. Further, the sentence shall run from the date of conviction, i.e. 18/09/2024.

37] Subject to the above variation of the sentence, the appeal is dismissed without costs.

38] The Registrar of this Court is directed to send this judgement to the High Court of Colombo along with the original case record for compliance.

JUDGE OF THE COURT OF APPEAL

AMAL RANARAJA J.

I agree

JUDGE OF THE COURT OF APPEAL